
WDMI FILING INSTRUCTIONS

Pigors v. McNeill et al.

I. OVERVIEW

Item	Detail
Court	United States District Court, Western Distr..
Division	Southern Division (Muskegon County venue)
Case Type	Civil Rights -- 42 USC § 1983
Filing System	CM/ECF (Case Management/Electronic Case Fil..
Filing Fee	\$405.00 (\$350 filing + \$55 admin) OR IFP wa..
Pro Se Filing	Permitted; special procedures apply

II. CM/ECF FILING PROCEDURES

A. Electronic Filing System

The Western District of Michigan uses the CM/ECF system for all filings.

Court Website: <https://www.miwd.uscourts.gov/>

CM/ECF Portal: <https://ecf.miwd.uscourts.gov/>

PACER Access: <https://pacer.uscourts.gov/>

B. Pro Se E-Filing

Option 1: E-Filing (if available for pro se)

- Some districts allow pro se litigants to register for CM/ECF.
- Check with the Clerk's office: (616) 456-2381.
- If permitted, register for a CM/ECF login.

Option 2: Paper Filing (traditional)

- Pro se litigants may file documents in person or by mail.
- Mail to: Clerk of Court, USDC-WDMI, 399 Federal Building, 110 Michigan Street NW, Grand Rapids, MI 49503
- Or the Kalamazoo office if applicable.

Option 3: Drop Box / In-Person

- File in person at the Grand Rapids courthouse.
- Address: Gerald R. Ford Federal Building, 110 Michigan Street NW, Grand Rapids, MI 49503

C. Filing the Initial Complaint

Step-by-Step Procedure

1. Prepare Documents (all in PDF format):
 - Complaint (01_COMPLAINT_1983.md -> PDF)
 - IFP Application (03_IFP_APPLICATION.md -> PDF)
 - Civil Cover Sheet (JS-44 form)
 - Summons forms (AO 440 -- one per Defendant)
 - USM-285 forms (one per Defendant)
2. Complete Civil Cover Sheet (JS-44):
 - Available at: <https://www.uscourts.gov/forms/civil-forms>
 - Basis of Jurisdiction: Box 3 (Federal Question)
 - Nature of Suit: 440 (Other Civil Rights) or 441 (Voting) -- use 440
 - Cause of Action: 42 USC § 1983
 - Check "Jury Demand: Yes"
3. File with Clerk:
 - Submit all documents to the Clerk's office.
 - If filing by mail, include a self-addressed stamped envelope for the file-stamped copy.
 - If filing IFP, submit the IFP Application simultaneously with the Complaint.
4. Case Assignment:

- The Clerk will assign a case number and judge.
- Receive file-stamped copies of all documents.

5. IFP Screening:

- The assigned judge (or magistrate) will review the IFP Application.
- Under 28 USC § 1915(e)(2), the Court will also screen the Complaint for frivolousness.
- If IFP is granted, the Court will order the U.S. Marshals to serve Defendants.

III. LOCAL RULE COMPLIANCE CHECKLIST

A. WDMI Local Civil Rules

Rule	Requirement	Status	Notes
LCivR 5.7	Filing format; PDF r..	[OK]	Convert .md to PDF
LCivR 5.6	Document title must ..	[OK]	Complaint has title
LCivR 7.1(a)	Briefs limited to 25..	N/A	Initial complaint, n..
LCivR 10.1	Caption requirements	[OK]	Full caption included
LCivR 10.6	Font: 13-point or la..	[!]	Verify after PDF con..
LCivR 10.6	Margins: 1 inch mini..	[!]	Verify after PDF con..
LCivR 10.6	Line spacing: Double..	[!]	Verify after PDF con..
LCivR 11.1	Signature requirement	[OK]	Signature line inclu..
LCivR 83.2	Pro se litigant must..	[OK]	Placeholders included
LCivR 41.2	Duty to prosecute di..	[OK]	--

B. Document Formatting Summary

Element	Requirement
Paper size	8.5" × 11"
Font	13-point proportional OR 10 CPI monospaced
Margins	1" minimum all sides
Line spacing	Double-spaced (except headings, quotes, foo..
Page numbers	Bottom center or bottom right
Caption	Full case caption on first page of every do..
Signature	Hand signature or "/s/ Andrew J. Pigors" fo..

IV. REQUIRED FORMS

A. Forms to Complete

Form	Purpose	Where to Get
JS-44 (Civil Cover Sheet)	Required with every new civi..	https://www.uscourts.gov/for..
AO 440 (Summons)	One per Defendant (5 total)	https://www.uscourts.gov/for..
USM-285 (Process Receipt/Ret..	One per Defendant for Marsha..	U.S. Marshals or Clerk's off..
IFP Application (Prepared)	Fee waiver request	03_IFP_APPLICATION.md
AO 239 (Subpoena -- if neede..	For compelling testimony/doc..	Available when needed

B. JS-44 Civil Cover Sheet -- Completion Guide

Field	Entry
County of Residence -- Plaintiff	Muskegon
County of Residence -- Defendant	Muskegon
Attorneys (Plaintiff)	PRO SE
Basis of Jurisdiction	Federal Question (Box 3)
Citizenship -- Plaintiff	Citizen of This State (Box 1)
Nature of Suit	440 -- Other Civil Rights
Origin	Original Proceeding (Box 1)
Cause of Action	42 USC § 1983 -- Deprivation of Civil Rights
Jury Demand	Yes -- Plaintiff
Related Cases	None in federal court

V. FILING FEE / IFP SUBMISSION

A. Filing Fee

Component	Amount
Civil filing fee	\$350.00
Administrative fee	\$55.00
Total	\$405.00

B. IFP Waiver

- File the IFP Application (03_IFP_APPLICATION.md converted to PDF) simultaneously with the Complaint.
- The Court will rule on IFP before requiring payment.
- If IFP is denied, the Court will provide a deadline to pay the fee.

- If IFP is granted:
- Filing fee is waived.
- U.S. Marshals serve all Defendants at government expense.
- Court screens Complaint under 28 USC § 1915(e)(2).

C. Payment Methods (If Needed)

Method	Details
Check/Money Order	Payable to "Clerk, U.S. District Court"
Credit Card	Available for CM/ECF e-filing
Cash	Accepted at clerk's office window

VI. FILING CHECKLIST

Documents to File

- ☐ 01_COMPLAINT_1983.md -> Convert to PDF, verify formatting
- ☐ 03_IFP_APPLICATION.md -> Convert to PDF, complete all financial fields
- ☐ JS-44 Civil Cover Sheet -> Complete and sign
- ☐ AO 440 Summons × 5 (one per Defendant) -> Complete with Defendant names/addresses
- ☐ USM-285 Forms × 5 (one per Defendant) -> Complete with service addresses
- ☐ Supporting financial documents for IFP (tax returns, pay stubs, bank statements)

Pre-Filing Verification

- ☐ All [TO BE INSERTED] placeholders completed with actual information
- ☐ All Defendant names spelled correctly
- ☐ All case numbers verified
- ☐ All dates verified against official records
- ☐ Signature on all documents
- ☐ Contact information (address, phone, email) on all documents
- ☐ PDF formatting complies with LCivR 10.6

Post-Filing Actions

- ☐ Retain file-stamped copies of all documents
 - ☐ Note assigned case number and judge
 - ☐ Calendar key deadlines:
 - Response to IFP ruling (if denied)
 - 90-day service deadline (FRCP 4(m))
 - Defendant response deadlines (21 days for individuals; 60 days for government)
 - ☐ Follow up with U.S. Marshals on service progress
 - ☐ Monitor CM/ECF or contact Clerk for any court communications
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VII. KEY CONTACTS

Office	Address	Phone
Clerk of Court, WDMI	399 Federal Building, 110 Mi..	(616) 456-2381
U.S. Marshals, WDMI	Gerald R. Ford Federal Build..	(616) 456-2438
Pro Se Assistance	Check court website for pro ..	
PACER Service Center		(800) 676-6856

VIII. IMPORTANT DEADLINES

Deadline	Rule	Triggered By
Filing of Complaint	No fixed deadline, but statu..	Statute of limitations -- 3 ..
Service of Process	90 days from filing	FRCP 4(m)
Answer/Response (individuals)	21 days from service	FRCP 12(a)(1)(A)
Answer/Response (government)	60 days from service	FRCP 12(a)(2)
FRCP 26(f) Conference	As directed by Court	Scheduling order
Initial Disclosures	14 days after 26(f) conference	FRCP 26(a)(1)

Statute of Limitations Note

Michigan's statute of limitations for § 1983 claims is 3 years (borrowing from MCL 600.5805(10)). The limitations period runs from the date of each constitutional violation. For continuing violations, the period runs from the most recent violation.

Most recent violations: Ongoing (parenting time still denied as of filing). The continuing violation doctrine may apply to extend the limitations period for the entire pattern of conduct.

Filing Instructions Date: 2026-03-04

Status: COMPREHENSIVE -- All procedures documented